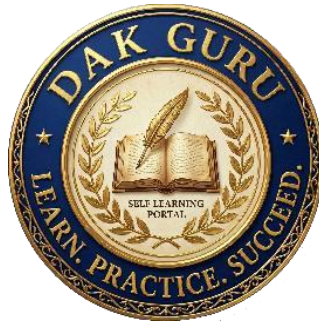




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The Prevention of Corruption Act, 1988

[Act No. 49 of 1988]

*As amended and in force — incorporating the
Prevention of Corruption (Amendment) Act, 2018 (16 of 2018)
and the Lokpal and Lokayuktas Act, 2013 (1 of 2014)*

DISCLAIMER: *This booklet has been prepared strictly from an examination point of view. While every effort has been made to ensure accuracy and to incorporate the latest amendments, changes and updates to the relevant Acts, Rules and Regulations, this document is intended as a study aid only. Readers and students are strongly advised to refer to the official Gazette of India and the consolidated bare Act published by the Government for the most reliable and authoritative text.*

About This Booklet

This booklet presents **The Prevention of Corruption Act, 1988** (Act No. 49 of 1988) in its latest in-force form. The text has been verified against the official consolidated version published by the **India Code (Legislative Department, Government of India)**, stated to be current “as on the 21st May, 2025”, and cross-checked with the Gazette as notified.

The Act has been amended by the **Lokpal and Lokayuktas Act, 2013 (1 of 2014)** and, most significantly, by the **Prevention of Corruption (Amendment) Act, 2018 (16 of 2018)**, which came into force on **26 July 2018**. State-specific provisions for the Union territories of Jammu & Kashmir and Ladakh were added by the Jammu and Kashmir Reorganisation framework. As on the date of this edition, **no further amendment has been made to the Act after 2018** (the 2019 change only removed the earlier exclusion of Jammu & Kashmir from the Act’s extent).

How the Act is organised

Chapter I Preliminary — short title, extent and definitions (sections 1–2).

Chapter II Appointment of Special Judges — sections 3–6.

Chapter III Offences and Penalties — sections 7–16.

Chapter IV Investigation into Cases under the Act — sections 17, 17A and 18 (plus State amendments 17B–17G for J&K/Ladakh).

Chapter IVA Attachment and Forfeiture of Property — section 18A (inserted in 2018).

Chapter V Sanction for Prosecution and Other Miscellaneous Provisions — sections 19–31.

The 2018 reform at a glance

The Amendment Act of 2018 re-aligned the law with the **United Nations Convention against Corruption**. The high-yield changes are:

1. **“Undue advantage” introduced.** A single, wide definition (section 2(d)) now replaces the older idea of “gratification / valuable thing”.
2. **Bribe-giving is now itself an offence.** A new section 8 punishes the giver of a bribe, extending the Act to private persons.

3. **Influence-peddling criminalised.** New section 7A targets a person who takes an undue advantage to influence a public servant by corrupt or illegal means or personal influence.
4. **Corporate liability.** Sections 9 and 10 make commercial organisations — and their responsible officers — liable for bribery.
5. **Criminal misconduct narrowed.** Section 13 now covers only (a) misappropriation and (b) intentional illicit enrichment (disproportionate assets); the older “habitual acceptance / obtaining valuable thing by abuse of position” limbs were dropped.
6. **Attachment & forfeiture.** A new Chapter IVA (section 18A) applies the Criminal Law Amendment Ordinance, 1944 to property procured by an offence under the Act.
7. **Two layers of approval.** Section 17A requires prior approval before an enquiry/inquiry/investigation; section 19 requires previous sanction before a court takes cognizance.
8. **Time-bound process.** Trial to be concluded, as far as practicable, in 2 years (extendable to a maximum of 4 years); sanction decision in 3 months (+1 month for legal consultation).
9. **Retired officials covered.** The sanction requirement under section 19 now expressly extends to public servants who have ceased to hold office.
10. **Section 24 omitted.** The earlier protection to a bribe-giver who deposed as a witness has been removed (consistent with bribe-giving now being an offence).

LEGISLATIVE NOTE

On 1 July 2024 the **Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS)** replaced the Code of Criminal Procedure, 1973. The bare text of this Act (as officially consolidated up to 21 May 2025) **still refers to the “Code of Criminal Procedure, 1973 (2 of 1974)”**; those references are now to be read, wherever applicable, as references to the corresponding provisions of the BNSS, 2023. The references below are retained as in the bare Act.

THE PREVENTION OF CORRUPTION ACT, 1988

[Act No. 49 of 1988]

An Act to consolidate and amend the law relating to the prevention of corruption and for matters connected therewith.

Chapter I – Preliminary

Section 1 – Short title and extent

- (1) This Act may be called the Prevention of Corruption Act, 1988.
- (2) It extends to the **whole of India**, and it applies also to **all citizens of India outside India** (that is, to Indian citizens even when they are abroad).

The Act received the assent of the President on **9 September 1988** and was published in the Gazette of India on 12 September 1988.

LEGISLATIVE NOTE

The words “except the State of Jammu and Kashmir” were **omitted by Act 34 of 2019** (the Jammu and Kashmir Reorganisation Act, 2019), section 95 and Schedule V, with effect from **31 October 2019**. From that date the Act extends to the whole of India, including the UTs of Jammu & Kashmir and Ladakh.

Section 2 – Definitions

In this Act, unless the context otherwise requires —

- (a) “**Election**” means any election (by whatever means held under any law) for selecting members of Parliament, of any Legislature, a local authority or other public authority.
- (aa) “**Prescribed**” means prescribed by rules made under this Act. [Clause (aa) was **inserted by the 2018 Amendment**.]
- (b) “**Public duty**” means a duty in the discharge of which the State, the public or the community at large has an interest.

Explanation Here “State” includes a corporation established by or under a Central, Provincial or State Act, or an authority or body owned, controlled or aided by the Government, or a Government company.

(c) **“Public servant”** means —

- (i) any person in the service or pay of the Government, or remunerated by the Government by fees or commission for performing any public duty;
- (ii) any person in the service or pay of a local authority;
- (iii) any person in the service or pay of a corporation established by or under a Central/Provincial/State Act, or an authority or body owned, controlled or aided by the Government, or a Government company;
- (iv) any Judge, including any person empowered by law to discharge (alone or as a member of a body) any adjudicatory functions;
- (v) any person authorised by a court of justice to perform any duty connected with the administration of justice — including a liquidator, receiver or commissioner appointed by such court;
- (vi) any arbitrator or other person to whom a cause or matter has been referred for decision or report by a court of justice or by a competent public authority;
- (vii) any person holding an office by virtue of which he is empowered to prepare, publish, maintain or revise an electoral roll, or to conduct an election or part of an election;
- (viii) any person holding an office by virtue of which he is authorised or required to perform any public duty;
- (ix) any office-bearer (president, secretary, etc.) of a registered co-operative society engaged in agriculture, industry, trade or banking that receives financial aid from the Government or a Government corporation/body;
- (x) any chairman, member or employee of any Service Commission or Board, or a member of any selection committee appointed by such Commission or Board;
- (xi) any Vice-Chancellor, member of a governing body, professor, reader, lecturer, teacher or employee of any University, and any person whose services are availed of by a University or public authority for holding/conducting examinations;
- (xii) any office-bearer or employee of an educational, scientific, social, cultural or other institution that receives financial assistance from the Central or State Government, or a local or other public authority.

Explanation 1 Persons falling under any of the above sub-clauses are public servants whether or not appointed by the Government.

Explanation 2 Wherever the words “public servant” occur, they apply to every person in actual possession of the situation of a public servant, whatever the legal defect in his right to hold it.

(d) “Undue advantage” means any gratification whatever, other than legal remuneration. [Inserted by the 2018 Amendment.]

(a) the word “gratification” is not limited to pecuniary gratifications or to gratifications estimable in money;

(b) “legal remuneration” is not restricted to pay; it includes all remuneration which the public servant is permitted by the Government or the organisation he serves to receive.

EXAM FOCUS

Two definitions are the backbone of the whole Act: “**public servant**” (section 2(c)) — deliberately very wide, covering anyone performing a public duty — and “**undue advantage**” (section 2(d)). Note: gratification need not be money, and “legal remuneration” includes anything the servant is permitted to receive.

Chapter II — Appointment of Special Judges

Section 3 — Power to appoint Special Judges

- (1) The **Central Government or the State Government** may, by **notification in the Official Gazette**, appoint as many Special Judges as necessary for any area(s) or case(s) to try —
 - (a)** any offence punishable under this Act; and
 - (b)** any conspiracy, attempt or abetment of any offence in clause (a).
- (2) A person is qualified for appointment as a Special Judge only if he is, or has been, a **Sessions Judge, Additional Sessions Judge or Assistant Sessions Judge** under the Code of Criminal Procedure, 1973.

Section 4 — Cases triable by Special Judges

- (1) Notwithstanding the CrPC or any other law, the offences in section 3(1) shall be tried by **Special Judges only**.
- (2) An offence is tried by the Special Judge for the area where it was committed (or the Special Judge appointed for the case, or one specified by the Central Government where there are several).

- (3) When trying a case, a Special Judge may also try any other offence with which the accused may be charged at the same trial under the CrPC.
- (4) The trial shall be held, **as far as practicable, on a day-to-day basis**, and shall endeavour to be concluded within **two years**.
 - If not concluded in time, the Special Judge must record reasons in writing.
 - The period may be extended for reasons recorded in writing, **not exceeding six months at a time**; the total (with extensions) shall not ordinarily exceed **four years in the aggregate**.

LEGISLATIVE NOTE

Sub-section (4) — the day-to-day-trial and two-year/four-year scheme — was substituted by the 2018 Amendment to speed up corruption trials.

Section 5 — Procedure and powers of a Special Judge

- (1) A Special Judge may take cognizance of offences without the accused being committed for trial, and follows the CrPC procedure for the trial of warrant cases by Magistrates.
- (2) To obtain evidence, the Special Judge may **tender a pardon to an accomplice (approver)** on condition of a full and true disclosure; such pardon is treated as one under section 307 CrPC.
- (3) Subject to the above, the CrPC applies to proceedings before a Special Judge; the Court of the Special Judge is deemed a Court of Session, and the prosecutor is deemed a public prosecutor.
- (5) A Special Judge may pass any sentence authorised by law for the offence of which the person is convicted.
- (6) While trying an offence under this Act, a Special Judge exercises **all powers and functions of a District Judge under the Criminal Law Amendment Ordinance, 1944**.

Section 6 — Power to try summarily

Where a Special Judge tries an offence under section 3(1) committed by a public servant **in relation to the contravention of an order under section 12A of the Essential Commodities Act, 1955**, he shall try it **summarily** (applying sections 262–265 CrPC).

- On a summary conviction, the maximum sentence is **imprisonment up to one year**.

- If a sentence above one year may be needed (or summary trial is otherwise undesirable), the Judge records an order and re-hears the case as a warrant case.
- There is **no appeal** against a summary sentence not exceeding **one month's imprisonment and a fine of two thousand rupees**; an appeal lies if the sentence exceeds these limits.

EXAM FOCUS

Section 6 (summary trial) is confined to contraventions linked to the Essential Commodities Act, 1955 — it is not a general power to try every corruption offence summarily.

Chapter III — Offences and Penalties

LEGISLATIVE NOTE

Sections 7, 8, 9 and 10 were wholly substituted by the 2018 Amendment, and sections 12 and 14 were re-cast. The structure below reflects the current law.

Section 7 — Offence relating to a public servant being bribed

Any public servant who —

- (a) obtains, accepts or attempts to obtain from any person an undue advantage, intending to perform a public duty improperly or dishonestly, or to forbear from such duty (whether by himself or by another public servant); or
- (b) obtains, accepts or attempts to obtain an undue advantage as a reward for the improper or dishonest performance of a public duty, or for forbearing to perform it; or
- (c) performs (or induces another public servant to perform) a public duty improperly or dishonestly, or forbears from it, in anticipation of, or in consequence of, accepting an undue advantage,

Punishment: imprisonment of not less than 3 years, which may extend to 7 years, and also fine.

Explanation 1 : Obtaining/accepting/attempting to obtain an undue advantage is itself an offence even if the public duty is not, or has not been, performed improperly.

ILLUSTRATION (STATUTORY – PART OF THE ACT)

A public servant, 'S' asks a person, 'P' to give him an amount of five thousand rupees to process his routine ration card application on time. 'S' is guilty of an offence under this section.

Explanation 2 : “Obtains/accepts/attempts to obtain” covers cases where the public servant acts by abusing his position, by using personal influence over another public servant, or by any other corrupt or illegal means; and it is immaterial whether he does so directly or through a third party.

Section 7A – Taking undue advantage to influence a public servant

Whoever accepts, obtains or attempts to obtain, for himself or another, **any undue advantage as a motive or reward to induce a public servant** — by corrupt or illegal means or by exercise of personal influence — to perform a public duty improperly or dishonestly, or to forbear from it, commits this offence.

Punishment: imprisonment of not less than 3 years, which may extend to 7 years, and also fine.

IN SIMPLE TERMS

This targets the “middleman / influence-peddler” — a private person who takes money claiming he can sway a public servant. The middleman need not be a public servant himself.

Section 8 – Offence relating to bribing of a public servant

- (1) Any person who **gives or promises to give an undue advantage** to another, intending —
- (i) to induce a public servant to perform a public duty improperly; or
 - (ii) to reward such public servant for the improper performance of a public duty,

Punishment: imprisonment which may extend to 7 years, or fine, or both. (No minimum term is prescribed.)

Proviso 1 This section **does not apply** where a person is compelled to give such undue advantage.

Proviso 2 But the person so compelled **must report the matter to the law-enforcement authority or investigating agency within seven days** of giving the undue advantage.

Proviso 3 Where the offence under this section is committed by a **commercial organisation**, such organisation is **punishable with fine**.

ILLUSTRATION (STATUTORY – PART OF THE ACT)

A person, 'P' gives a public servant, 'S' an amount of ten thousand rupees to ensure that he is granted a license, over all the other bidders. 'P' is guilty of an offence under this sub-section.

Explanation It is immaterial whether the person to whom the undue advantage is given or promised is the same person who is to perform (or has performed) the public duty concerned; and it is immaterial whether the undue advantage is given or promised directly or through a third party.

- (2) Sub-section (1) does not apply to a person who, after informing a law-enforcement authority/investigating agency, gives or promises an undue advantage in order to assist that agency in its investigation.

EXAM FOCUS

Bribe-giving is now a direct offence. Frequently tested: the compelled giver escapes liability only if he **reports within 7 days**; section 8 carries no minimum imprisonment (unlike sections 7 and 7A).

Section 9 – Bribing a public servant by a commercial organisation

- (1) Where an offence under this Act is committed by a **commercial organisation**, the organisation is **punishable with fine** if a person associated with it gives/promises an undue advantage to a public servant intending –

- (a) to obtain or retain business for the organisation; or
- (b) to obtain or retain an advantage in the conduct of business for the organisation.

Proviso It is a **defence** for the organisation to prove that it had in place **adequate procedures** (in compliance with prescribed guidelines) to prevent associated persons from such conduct.

- (3) “**Commercial organisation**” means –

- (i) a body incorporated in India which carries on a business (in India or outside);
- (ii) any other body incorporated outside India which carries on a business, or part of it, in any part of India;
- (iii) a partnership firm or association of persons formed in India which carries on a business (in India or outside); or
- (iv) any other partnership/association formed outside India which carries on a business, or part of it, in any part of India.

“Business” includes a trade, profession or the providing of service. A person is “associated” with the organisation if he performs services for or on its behalf (employee, agent or subsidiary — the capacity does not matter).

(4) The offences under **sections 7A, 8 and 9 are cognizable.**

(5) The Central Government shall, in consultation with stakeholders, prescribe guidelines for commercial organisations to prevent bribery.

Section 10 — Person in charge of a commercial organisation to be guilty

Where an offence under section 9 is committed by a commercial organisation **with the consent or connivance of any director, manager, secretary or other officer**, that person is guilty of the offence and is liable to be prosecuted.

Punishment: imprisonment of not less than 3 years, which may extend to 7 years, and also fine.

For this section, in relation to a firm, “**director**” includes a partner in the firm.

IN SIMPLE TERMS

Section 9 fixes the company with a fine; section 10 fixes the responsible human being (director/manager/officer) with imprisonment and fine — but only if the offence was committed with that person’s consent or connivance.

Section 11 — Public servant obtaining an undue advantage without consideration

A public servant who accepts, obtains or attempts to obtain, for himself or another, **any undue advantage without consideration** (or for a consideration he knows to be inadequate) from a person whom he knows to be concerned in a proceeding or business transacted by him, or connected with his official functions/public duty (or a person interested in or related to such a person), commits this offence.

Punishment: imprisonment of not less than 6 months, which may extend to 5 years, and also fine.

LEGISLATIVE NOTE

The 2018 Amendment substituted “undue advantage” for the earlier “valuable thing” and deleted the words “or agrees to accept.”

Section 12 — Punishment for abetment of offences

Whoever **abets any offence punishable under this Act** — whether or not the offence is actually committed in consequence — is punishable.

Punishment: imprisonment of not less than 3 years, which may extend to 7 years, and also fine.

LEGISLATIVE NOTE

Substituted by the 2018 Amendment: abetment now extends to any offence under the Act (earlier it was tied to the bribery offences only).

Section 13 — Criminal misconduct by a public servant

(1) A public servant commits **criminal misconduct** —

- (a) if he dishonestly or fraudulently misappropriates or otherwise converts for his own use any property entrusted to him or under his control as a public servant, or allows any other person to do so; or
- (b) if he intentionally enriches himself illicitly during the period of his office.

Explanation 1 A person is **presumed to have intentionally enriched himself illicitly** if he (or anyone on his behalf) is, or has at any time during his office been, in possession of **pecuniary resources or property disproportionate to his known sources of income** which he cannot satisfactorily account for.

Explanation 2 “Known sources of income” means income received from any lawful source.

(2) Punishment: **imprisonment of not less than 4 years, which may extend to 10 years, and also fine.**

EXAM FOCUS

Post-2018, criminal misconduct is **limited to two limbs**: (a) misappropriation of property, and (b) **disproportionate assets** (intentional illicit enrichment). The older limbs — habitual acceptance of bribes, and obtaining a valuable thing/pecuniary advantage by abuse of position — have been **removed**. Carries the highest punishment in the Act (4–10 years).

Section 14 — Punishment for habitual offender

Whoever, having been convicted of an offence under this Act, **subsequently commits another offence** punishable under this Act, is punishable.

Punishment: imprisonment of not less than 5 years, which may extend to 10 years, and also fine.

Section 15 — Punishment for attempt

Whoever attempts to commit an offence under **clause (a) of section 13(1)** (i.e. misappropriation of property) is punishable.

Punishment: imprisonment of not less than 2 years, which may extend to 5 years, and fine.

LEGISLATIVE NOTE

Section 15 covers an attempt only with respect to section 13(1)(a). After the 2018 Amendment, the reference “clause (c) or clause (d)” was replaced by “clause (a)”.

Section 16 — Matters to be considered for fixing fine

Where a fine is imposed under **section 7, 8, 9, 10, 11, section 13(2), 14 or 15**, the court, in fixing the amount, shall take into account the amount or value of the property the accused obtained by the offence — or, for an offence under section 13(1)(b) (disproportionate assets), the pecuniary resources or property he cannot satisfactorily account for.

Chapter IV — Investigation into Cases under the Act

Section 17 — Persons authorised to investigate

Notwithstanding the CrPC, **no police officer below the following rank** shall investigate an offence under this Act, or make an arrest without warrant, without an order of a Metropolitan Magistrate / Magistrate of the first class —

- (a) Delhi Special Police Establishment (CBI): an **Inspector of Police**;
- (b) the metropolitan areas of Bombay, Calcutta, Madras and Ahmedabad (and any other notified metropolitan area): an **Assistant Commissioner of Police**;
- (c) elsewhere: a **Deputy Superintendent of Police** or an officer of equivalent rank.

Proviso 1 A State Government may, by general or special order, authorise an Inspector of Police to investigate without the Magistrate’s order or to arrest without a warrant.

Proviso 2 An offence under **section 13(1)(b) (disproportionate assets)** shall not be investigated without the order of an officer not below the rank of a **Superintendent of Police**.

Section 17A — Prior approval for enquiry/inquiry/investigation

No police officer shall conduct any **enquiry, inquiry or investigation** into an offence under this Act where the alleged offence is relatable to **any recommendation made or decision taken by the public servant in discharge of his official functions/duties, without the previous approval —**

- (a) of the Central Government, if the person was employed in connection with the affairs of the Union;
- (b) of the State Government, if he was employed in connection with the affairs of a State;
- (c) in any other case, of the authority competent to remove him from office.

Proviso 1 No such approval is needed for **arrest on the spot** on the charge of accepting (or attempting to accept) an undue advantage.

Proviso 2 The authority must convey its decision **within three months**, extendable (for reasons recorded in writing) by a **further one month**.

IN SIMPLE TERMS

Two different approvals must not be confused. **Section 17A** = approval needed **before starting** an enquiry/investigation. **Section 19** = sanction needed **before a court takes cognizance** of the case for trial.

LEGISLATIVE NOTE

Section 17A was inserted by the 2018 Amendment. It was inserted after section 17 (s. 12 of Act 16 of 2018, w.e.f. 26 July 2018).

STATE AMENDMENT — APPLIES ONLY TO THE UTS OF JAMMU & KASHMIR AND LADAKH

Sections 17B to 17G below were inserted only for the Union territories of Jammu & Kashmir and Ladakh by the **Jammu and Kashmir Reorganization (Adaptation of Central Laws) Order, 2020** (Notification S.O. 1123(E) dated 18 March 2020). **They do not form part of the Act for the rest of India.**

17B — Anti-Corruption Bureau (ACB): the Government of the UT of J&K shall, by Gazette notification, establish an ACB (a Director plus officers/staff) to investigate offences under this Act.

17C — Powers of attachment: an ACB officer not below DSP rank, with the Director's prior written approval, may seize or attach property believed to be acquired through criminal misconduct; the Investigating Officer must inform the Designated Authority within **48**

hours, who may confirm or revoke the order within **30 days** (an interim direction not to deal with property may run up to 90 days).

17D — Appeal to the Special Judge: an aggrieved person may appeal within **one month**; the Special Court may confirm/revoke within **60 days**, and may order forfeiture of seized/attached property.

17E — Show-cause before forfeiture: no forfeiture order is made without notice and an opportunity to be heard; a bona fide transferee for value is protected.

17F — Appeal to High Court: an aggrieved person may appeal to the High Court of Jammu & Kashmir within one month.

17G — an order of forfeiture does not prevent any other punishment to which the person is liable under this Act.

Section 18 — Power to inspect bankers' books

If a police officer empowered to investigate under section 17 has reason to suspect an offence and considers it necessary, he may **inspect bankers' books** relating to the accounts of the suspect (or of any person holding money on his behalf) and take certified copies; the bank must assist.

Proviso This power **must not be exercised by an officer below the rank of Superintendent of Police** unless specially authorised by an officer of or above that rank.

"Bank" and "bankers' books" carry the meanings in the **Bankers' Books Evidence Act, 1891**.

Chapter IVA — Attachment and Forfeiture of Property

Section 18A — Criminal Law Amendment Ordinance, 1944 to apply to attachment

- (1) Save as otherwise provided under the **Prevention of Money-Laundering Act, 2002**, the provisions of the **Criminal Law Amendment Ordinance, 1944** shall, as far as may be, apply to the attachment, administration of attached property and execution of an order of attachment or confiscation of money/property **procured by means of an offence under this Act**.
- (2) For this Act, references in that Ordinance to "**District Judge**" are read as "**Special Judge**".

EXAM FOCUS

New Chapter IVA (section 18A) was inserted by the 2018 Amendment. It is the Act's central machinery for attaching/forfeiting the proceeds of corruption. (It is distinct from the J&K-specific attachment scheme in sections 17C–17G.) Where money-laundering is involved, the PMLA, 2002 prevails.

Chapter V — Sanction for Prosecution and Miscellaneous Provisions

Section 19 — Previous sanction necessary for prosecution

- (1) No court shall take cognizance of an offence punishable under **sections 7, 11, 13 and 15** alleged against a public servant, **except with previous sanction** (save as otherwise provided in the Lokpal and Lokayuktas Act, 2013) —
- (a) of the Central Government, for a person employed in connection with the affairs of the Union and not removable except by/with the Central Government's sanction;
 - (b) of the State Government, for a person employed in connection with the affairs of a State and not removable except by/with the State Government's sanction;
 - (c) of the authority competent to remove him, in any other case.

Private complaints (proviso): a person other than a police/investigation/law-enforcement officer cannot ask for sanction unless (i) he has filed a complaint in a competent court, and (ii) the court has not dismissed it under section 203 CrPC but directed him to obtain sanction. Such sanction is not granted without giving the public servant an opportunity of being heard.

Time limit: the appropriate Government/authority shall endeavour to convey its decision **within three months** of receiving the proposal; where legal consultation is required, this may be extended by a **further one month** (reasons recorded in writing).

Explanation For sub-section (1), “public servant” **includes a person who has ceased to hold office** (i.e. a retired official) during which the offence is alleged.

- (2) Where there is doubt about which Government/authority should sanction, it is the one competent to remove the public servant at the time of the alleged offence.
- (3) No finding/sentence is reversed, and no proceedings are stayed, merely for an error/omission/irregularity in sanction **unless a failure of justice has in fact**

resulted; and no court may revise an interlocutory order or stay proceedings on any other ground.

EXAM FOCUS

Three heavily-tested points: sanction is needed for **sections 7, 11, 13 and 15 only** (section 10 was dropped from this list in 2018); it now expressly covers **retired public servants**; and a mere defect in sanction does not vitiate the trial unless it causes a **failure of justice**.

Section 20 — Presumption where a public servant accepts an undue advantage

In a trial of an offence under **section 7 or section 11**, if it is proved that the public servant accepted/obtained/attempted to obtain an undue advantage, **it shall be presumed — unless the contrary is proved —** that he did so as a motive or reward under section 7 (or, as the case may be, without/for inadequate consideration under section 11).

LEGISLATIVE NOTE

Section 20 was substituted by the 2018 Amendment and the statutory presumption is now confined to sections 7 and 11.

Section 21 — Accused to be a competent witness

A person charged under this Act is a **competent witness for the defence** and may give evidence on oath in disproof of the charges. However —

- (a) he is not called as a witness except at his own request;
- (b) his failure to give evidence is not to be commented on, nor raise any presumption against him;
- (c) he is not to be asked about other offences or bad character, except in the limited circumstances specified.

Section 22 — CrPC to apply subject to modifications

The CrPC applies to proceedings under this Act **with specified modifications** to sections 243, 309, 317 and 397 — chiefly, the accused must give his list of defence witnesses/documents at once, proceedings are not adjourned merely because a revision (s. 397) is filed, the trial may proceed in the accused's absence in certain cases, and a court should not ordinarily call for records on a party's revision application.

Section 23 — Particulars in a charge under section 13(1)(a)

For a charge of misappropriation under **section 13(1)(a)**, it is sufficient to describe the property and the dates between which the offence is alleged, **without specifying particular items or exact dates**; such a charge is deemed to be a charge of one offence. The period between the first and last date **shall not exceed one year**.

LEGISLATIVE NOTE

The 2018 Amendment updated the cross-reference here from “section 13(1)(c)” to “section 13(1)(a)”.

Section 24 — [Omitted]

Section 24 (“Statement by bribe-giver not to subject him to prosecution”) was **omitted by the 2018 Amendment** (s. 17 of Act 16 of 2018). Earlier, a bribe-giver who deposed as a witness was protected; that protection no longer exists, because **giving a bribe is now itself an offence under section 8**.

Section 25 — Military, Naval and Air Force or other law not affected

- (1) Nothing in this Act affects the jurisdiction or procedure of any court/authority under the **Army Act 1950, Air Force Act 1950, Navy Act 1957, Border Security Force Act 1968, Coast Guard Act 1978 and National Security Guard Act 1986**.
- (2) For the purposes of any such law, the court of a Special Judge is deemed a court of ordinary criminal justice.

Section 26 — Special Judges under Act 46 of 1952

Every Special Judge appointed under the **Criminal Law Amendment Act, 1952** and holding office when this Act commenced is **deemed to be a Special Judge appointed under section 3**, and continues with pending proceedings under this Act.

Section 27 — Appeal and revision

Subject to this Act, the **High Court** may exercise all the powers of appeal and revision under the CrPC as if the court of the Special Judge were a **Court of Session** within its local limits.

Section 28 — Act to be in addition to any other law

The provisions of this Act are **in addition to, and not in derogation of, any other law** in force; nothing here exempts a public servant from any other proceeding that might be instituted against him.

Section 29 — Amendment of the Ordinance 38 of 1944

This section makes consequential amendments to the **Criminal Law Amendment Ordinance, 1944** — inserting “or, as the case may be, the Central Government” alongside “State Government”, extending a time limit from three months to one year, and updating its Schedule to refer to offences under this Act.

Section 29A — Power to make rules

- (1) The **Central Government** may, by notification, make rules to carry out the provisions of this Act — in particular, the guidelines for commercial organisations (section 9) and for sanction for prosecution (section 19).
- (2) Every rule must be **laid before each House of Parliament for 30 days**, and is subject to modification or annulment by both Houses.

LEGISLATIVE NOTE

Section 29A was inserted by the 2018 Amendment (s. 18 of Act 16 of 2018, w.e.f. 26 July 2018).

Section 30 — Repeal and saving

- (1) The **Prevention of Corruption Act, 1947** and the **Criminal Law Amendment Act, 1952** are hereby repealed.
- (2) Despite the repeal (and without prejudice to section 6 of the General Clauses Act, 1897), anything done under the repealed Acts continues, so far as consistent with this Act, as if done under the corresponding provision of this Act.

Section 31 — [Repealed]

Section 31 (which had omitted sections 161 to 165A of the Indian Penal Code) was itself **repealed by the Repealing and Amending Act, 2001**. The bribery provisions of the IPC (then sections 161–165A) were taken out of the IPC because they were incorporated, with enhanced punishment, into this Act.

Key Amendments – Quick Reference

The following Acts have amended the Prevention of Corruption Act, 1988:

Amending Act	In force from	Principal effect
Lokpal and Lokayuktas Act, 2013 (1 of 2014)	16 Jan 2014	Enhanced the punishment for criminal misconduct (section 13) and for attempt (section 15); added the Lokpal carve-out in section 19.
Prevention of Corruption (Amendment) Act, 2018 (16 of 2018)	26 Jul 2018	Substituted sections 7–10; added 7A, 17A, Chapter IVA (18A), 29A; re-cast sections 12, 13(1), 14, 20; omitted section 24; introduced “undue advantage” and corporate liability; time-bound trial and sanction.
Jammu & Kashmir Reorganisation Act, 2019 (34 of 2019)	31 Oct 2019	Omitted the earlier exclusion of J&K from section 1(2). The ACB provisions (sections 17B–17G) apply only to the UTs of J&K and Ladakh via the Adaptation Order, 2020.



Summary of Offences and Punishments

All terms below are as amended and currently in force. “+ fine” indicates that fine is also payable; for section 8 the punishment is imprisonment **or** fine **or** both, and a commercial organisation is liable to fine.

Sec.	Offence	Punishment
7	Public servant being bribed	3–7 years + fine
7A	Taking undue advantage to influence a public servant	3–7 years + fine
8	Bribing a public servant (bribe-giver)	Up to 7 years, or fine, or both
9	Bribing by a commercial organisation	Fine (no imprisonment for the organisation)
10	Officer of a commercial organisation guilty	3–7 years + fine
11	Undue advantage without consideration	6 months – 5 years + fine
12	Abetment of any offence under the Act	3–7 years + fine
13	Criminal misconduct (misappropriation / disproportionate assets)	4–10 years + fine
14	Habitual offender	5–10 years + fine
15	Attempt (only s. 13(1)(a) – misappropriation)	2–5 years + fine

COGNIZABLE OFFENCES

By section 9(4), the offences under **sections 7A, 8 and 9 are cognizable**. Offences under the Act are tried only by Special Judges (sections 3–4).

SOURCE & CURRENCY

Primary source: the official consolidated text of the Prevention of Corruption Act, 1988 published by the **India Code (Legislative Department, Government of India)**, stated as current “as on the 21st May, 2025”, read with the Gazette as notified.

Amendments incorporated: the Lokpal and Lokayuktas Act, 2013 (1 of 2014) and the Prevention of Corruption (Amendment) Act, 2018 (16 of 2018); plus the State amendments for J&K/Ladakh. As on the date of this edition, **no further amendment has been enacted after 2018**. Students should always confirm the position against the latest Gazette before relying on it.

--End of Notes--